

Before the
United States Copyright Office
Library of Congress
Washington, D.C.

In the Matter of	)	
Section 1201 Study:	)	Docket No. 2015-8
Request for Additional Comments	)	

Additional Reply Comments of Auto Care Association

Auto Care Association (“Auto Care”), in reply to the additional comments submitted in response to the September 27, 2016 Notice of Inquiry (“NOI”), notes that there was little opposition to resolving the specific issues addressed in Auto Care’s comments to date. Repair and customization products and service by consumers and businesses are lawful under the Patent Act for physical vehicle parts. Where digital code or data controls or performs the function of physical parts, that lawful repair should not be thwarted by overbroad application of Section 1201.

With few exceptions, by parties with opposing economic interests, commenters generally recognize that the Copyright Act presents no convincing policy reasons why Section 1201 should deprive consumers and businesses the right to access software to repair and customize motor vehicles. Auto Care replies to these comments below, and explains why there is no policy or legal justification not to grant a permanent exemption for vehicle repair and enact legislation that clearly exempts such repair from the threat of liability for anticircumvention and antitrafficking.

1. Comments Support the Goal of Legislation or a Permanent Exemption Securing the Right to Repair.

As Auto Care has explained,¹ modern motor vehicles increasingly rely on software routines, embedded as firmware in scores of part modules networked throughout a vehicle, to control the operations of physical equipment. Over the last few years, original equipment manufacturers of motor vehicles (OEMs) have attempted to wield Section 1201 of the DMCA as an offensive weapon to stop consumers and businesses from competing to repair or customize their vehicles, or to supply replacement parts for these vehicles. These technological measures by design prevent repair or replacement of the part, not access to copyrighted software. In some cases, the allegedly protected “software” is uncopyrightable data, not a copyrightable program.² In others, the anticompetitive motive is even clearer, by assuring that every module must be tied

¹ Additional Comments of Auto Care Association, *In the Matter of Section 1201 Study: Notice of Inquiry and Request for Additional Comments*, Dkt. No. 2015-8 (Oct. 27, 2016) (“Additional Comments”), available online at <https://www.regulations.gov/document?D=COLC-2015-0012-0120>.

² See, *Ford Motor Company v. AUTEL US Inc.*, No. 14-13760, Opinion and Order, (E.D. Mich. Sept. 30, 2015).

by the OEM to the vehicle's VIN number, so that no replacement part installed by a non-OEM or dealer would function.

Auto Care in its Additional Comments therefore proposed a permanent exemption for, and a specific legislative solution to exempt, repair activities from Section 1201(a)(1) and (2) and (b). Several commenters suggested an alternative approach which relied upon the existing terms of the software maintenance exemption from infringement under Section 117.³ Others suggested that the Copyright Office promulgate a permanent exemption for repair activities.⁴ Several comments recommended legislation to clarify that Section 1201 does not prevent access, repair and modifications of functional software, or expert assistance in doing so.⁵

To be clear, Auto Care would support a permanent exemption or an express legislative exemption *only* if it can address all of the key needs of consumers and businesses with respect to products and parts whose functions are controlled by embedded software:

- Circumventing technological protection measures in order to access the software
- Making interim copies of the software
- Analyzing the code
- Altering the code for purposes of repair or modification, or to develop an alternative program to replace the OEM-supplied software
- Making a replacement copy of the software with any alterations, as applicable
- Embedding that replacement copy in either the original repaired or refurbished part or a replacement part
- Permitting skilled third parties to develop, market, and use circumvention tools for the specific purpose of performing these activities

Any proposed permanent exemption that falls short with respect to any of these essential rights will effectively deny all of these rights to many, if not most, of the consumers within a proposed class. Any proposed legislation that does not ensure each of these rights to consumers and businesses will similarly fail to accommodate the needs of consumers and fair competition. Given the number of software routines in each car, the complexity of the software, and the robustness of technological measures, a single consumer would find it daunting to circumvent and repair every possible module in a motor vehicle without assistance. Similarly, it is unrealistic to expect that every independent repair shop would be able to perform these tasks for literally hundreds of makes and models of motor vehicles over their useful life.

³ See Comments of Public Knowledge, and Comments of Motor & Equipment Manufacturers Association (MEMA).

⁴ See Comments of Owners' Rights Initiative, Comments of The Repair Association and iFixit, Comments of Electronic Frontier Foundation, and Comments of International Imaging Technology Association and Static Control Components, Inc.

⁵ See Comments of Consumer Technology Association (rationale of DMCA, as applied in the Unlocking Act, supports auto repair exemption).

Therefore, the rationales supporting an exception for vehicle repair only can be realized by supporting, in addition to an individual right to circumvent, a right for that individual to acquire both circumvention tools and circumvention and repair services.⁶

2. Legislative and Regulatory Exemptions to Copyright Law Should Not Depend on Non-Copyright Considerations.

The majority of opponents to a motor vehicle repair exemption articulate no basis for their opposition under the Copyright Act.⁷ Instead, their comments rely on unfounded and amorphous fears of the consequences of an exemption upon environmental or safety concerns. The Copyright Office should reject all these arguments.

As a matter of law, the Copyright Office cannot and should not consider any arguments that are not based under the Copyright Act. Auto Care already has explained in this proceeding that the Copyright Office lacked authority to base its exemption decisions under laws other than the Copyright Act, for four reasons:

- (1) Exemptions under Section 1201(a)(1)(B) are granted to safeguard the ability of “users of a copyrighted work” to engage in “noninfringing uses under this title,” so must be based on considerations of copyright law.
- (2) The statutorily-defined duties of the Librarian and the Copyright Office include no general legal authority outside of copyright. To the extent any non-copyright considerations pertain, Section 1201(a)(1)(C) allocates that responsibility to the Assistant Secretary for Communications and Information of the Department of Commerce.
- (3) Under principles of statutory interpretation, all factors listed under Section 1201(a)(1)(C)(i)-(v) must be confined to considerations of copyright law and policy.⁸
- (4) Consideration of extraneous laws is unnecessary. A Librarian-granted exception does not abrogate or excuse compliance with other legal requirements, including those imposed under environmental and commercial regulation.⁹

As a factual matter, none of these arguments is new. Virtually since the dawn of the automobile, OEMs and dealers baselessly have criticized consumers and independent repair

⁶ *Accord*, Comments cited at nn. 1-3, *supra*; Comments of Institute of Scrap Recycling Industries, Inc.

⁷ See Comments of Association of Equipment Manufacturers/Equipment Dealers Association (“AEM Comments”), Comments of Business Software Alliance.

⁸ See *Circuit City Stores, Inc. v. Adams*, 532 U.S. 105, 114-115 (2001) (residual clause must be read in light of previously-cited categories under statutory interpretation canon of *ejusdem generis*).

⁹ Comments of Auto Care Association, *In the Matter of Section 1201 Study: Notice and Request for Public Comment*, Dkt. No. 2015-8 at 7-8 (March 3, 2016), available online at <https://www.regulations.gov/document?D=COLC-2015-0012-0036>.

shops that service the overwhelming majority of vehicles in the United States, in an attempt to boost their own market share and profitability. Indeed, the AEM Comments explicitly argue the economic impact on their businesses as a purported justification for the Copyright Office to restrain aftermarket competition. The only “novelty” of the argument is that parts that traditionally have been replaced and repaired by these “unauthorized” technicians are now controlled by embedded software. But Auto Care members have their own software engineers who have the technical skill to diagnose and repair parts with embedded software, and to design and deploy software fixes and improvements to the OEM code. There is no reason to assume, and no proof has been submitted to suggest, that third party software on the market is any less protective of the environment or of public safety.¹⁰ And while the AEM Comments profess concerns over “counterfeit” auto parts, no such considerations pertain here. Replacement parts manufactured and sold by Auto Care members are lawful, not “counterfeit”; and fears of some counterfeiting do not justify denying the rights of consumers and Auto Care members to repair and customize motor vehicles using lawful non-OEM parts.

Indeed, even the government agencies entrusted with responsibility for environmental and highway safety apparently have no qualms about allowing consumers to repair and replace software in their vehicles or to circumvent technological protection measures. Although the Librarian interposed (erroneously, in Auto Care’s view) a one-year delay in the effective date of the limited exception granted under Classes 21 and 22, to obtain further input from those government agencies, that year now has elapsed—with no objections, warnings, or contrary recommendations.

Auto Care therefore respectfully submits that too much credence already has been given to those who, failing to find any copyright law basis for their opposition, seek to forestall repair rights under non-copyright laws. That their oppositions are based solely on extraneous laws, and not on copyright factors, provides additional support for Auto Care’s copyright-based arguments in favor of legislation or permanent exemptions.

3. Comments Opposing Creation of Tools, or Proposing Licensing of Tools, Do Not Resolve the Legitimate Concerns for Vehicle Repair.

Several commenters suggest danger lurks in any exemption from antitrafficking, repeating past arguments that tools that enable one exemption could be employed for unauthorized purposes.¹¹ The exemptions proposed by Auto Care expose the flaws in that argument. Software that consumers and Auto Care members seek to access is not only specific to a particular make and model, but is often tied by the technological protection measure to a

¹⁰ Conversely, use of OEM software hardly guarantees compliance with environmental or public safety regulations. Independent automotive website, Edmunds.com, identifies nearly 300 instances of software recalls to fix a wide variety of mechanical, safety, and environmental problems. <http://www.edmunds.com/search/results.html?q=software+recall>. See Jeff S. Bartlett, Michelle Naranjo, and Jeff Plungis, “Guide to the Volkswagen Emissions Recall,” Consumer Reports, Nov. 1, 2016, <http://www.consumerreports.org/cro/cars/guide-to-the-volkswagen-dieselgate-emissions-recall->

¹¹ See, Comments of Copyright Alliance, Comments of SIIA.

particular vehicle VIN. Circumvention tools by necessity are equally specific to those particular technological measures, and are useless except to access that software. There is no evidence that a tool used to access and diagnose the software in a Ford automobile or John Deere tractor would create risks for copyrighted software or media for personal computers, mobile devices, eBook readers, or devices or platforms intended to transmit, perform, or display the typical literary, audio, and audiovisual works that Section 1201 was designed to protect.

Finally, a proposal to facilitate licensing or availability of “authorized” circumvention tools may be successful for academic users or consumers, who do not compete against the authors of those works. However, experience shows that such solutions do not fully address the needs of motor vehicle users and repair businesses.¹² As Auto Care observed in its Additional Comments, existing voluntary agreements or state “right to repair” laws do not alleviate the copyright-based concerns implicated by Section 1201 or allegations of copyright infringement. Auto Care Additional Comments at 7. Had those agreements and laws been sufficient, manufacturers would not already have been sued by major automobile manufacturers for engaging in ordinary aftermarket competition that otherwise was permissible under patent law. *Id.* at 4 & nn. 13-14.

Auto Care thanks the Copyright Office for its continuing efforts in furtherance of this Study. Should the Office have any questions, please feel free to contact us at your convenience.

Respectfully submitted,

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¹² See Comments of AACCS LA and DVD CCA.